

CASES ADJUDGED
IN THE
SUPREME COURT OF THE UNITED STATES
AT
OCTOBER TERM, 1932.

WOOD, SECRETARY OF STATE OF MISSISSIPPI,
ET AL. *v.* BROOM.

APPEAL FROM THE DISTRICT COURT OF THE UNITED STATES
FOR THE SOUTHERN DISTRICT OF MISSISSIPPI.

No. 424. Argued October 13, 1932.—Decided October 18, 1932.

1. The provisions of the Reapportionment Act of August 8, 1911, requiring that congressional election districts be of contiguous and compact territory and, as nearly as practicable, of equal populations, related only to the districts to be formed under that Act, and were not reënacted in the Reapportionment Act of June 18, 1929. P. 8.
 2. Where a bill sought to compel state election officials to conform to an Act of Congress which the court found to be no longer in force, *held* that questions whether, if the Act were effective, the controversy would be justiciable and the plaintiff entitled to equitable relief, need not be considered. *Id.*
- 1 F. Supp. 134, reversed.

APPEAL from a decree of the District Court of three judges, which, on final hearing on bill and answer, permanently enjoined officers of the State of Mississippi from conducting an election of representatives in Congress, in pursuance of an Act of the legislature, which the decree declared to be invalid and unconstitutional.